

THE PEOPLING OF
BRITISH NORTH AMERICA



THE BARBAROUS YEARS

The Conflict of Civilizations

1600–1675

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CHAPTER 7



The Chesapeake's New World

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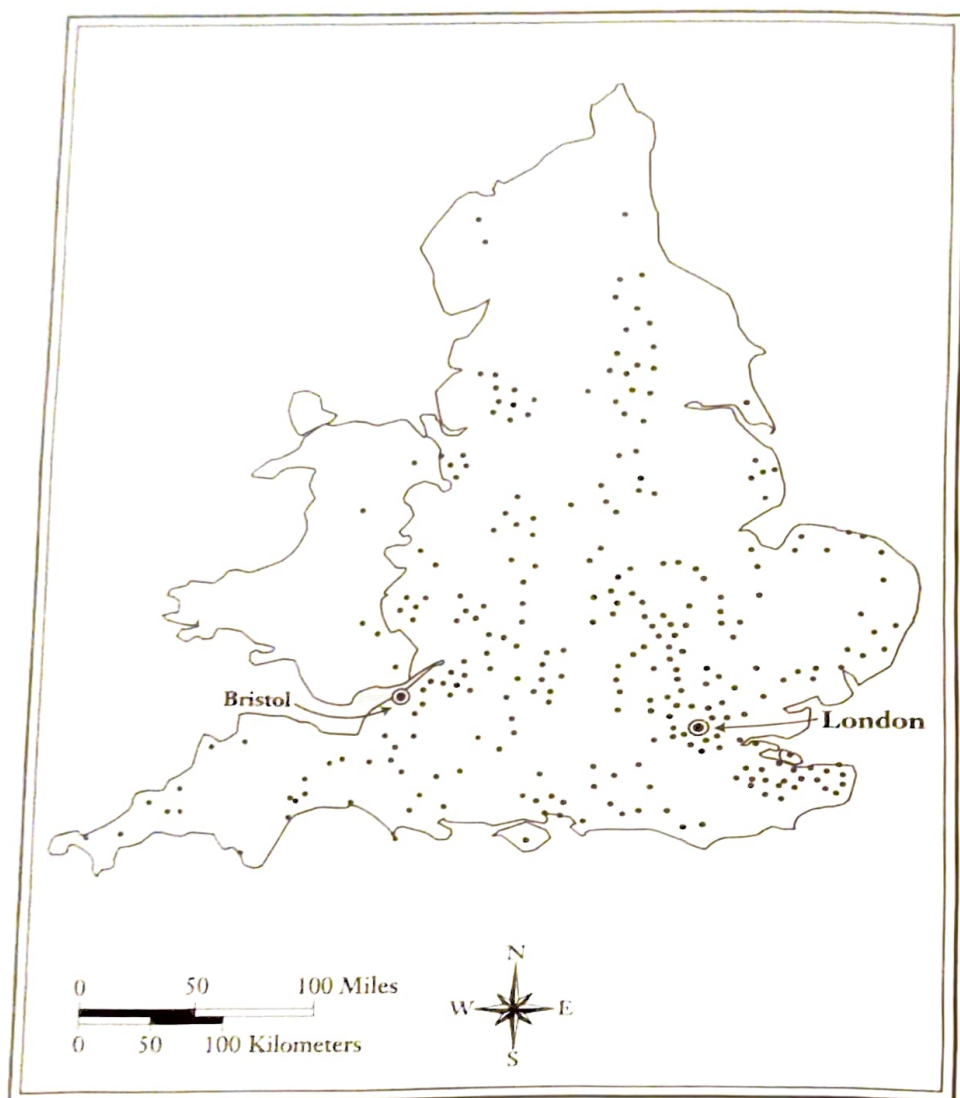
WELL BEFORE 1660, when Lord Baltimore had recovered full possession of his proprietary colony and when the most tumultuous conflicts in that colony had subsided, a pattern of life had begun to emerge throughout the Chesapeake lands different from what had been known before, far different from what the original sponsors had hoped for and designed. The most powerful propulsions were created by the knowledge, spreading throughout the British archipelago, that after all the barbarism of the initial settlements, planters—even small and middle-level planters—in the Chesapeake region were beginning to pile profit upon profit by growing tobacco; that there, and throughout the North American coastal region, land was available for private ownership and cultivation; and that the value of the land, even undeveloped land, was rising as settlement expanded. The result was rapid population growth.

In the late 1640s and the years that followed, newcomers arrived by the hundreds, then by the thousands—eight to nine thousand per decade in the 1630s and 1640s. Prominent among them, attracted by the region's widely publicized profitability, were free, independent migrants who arrived with family, one or two servants, and some small savings. They came from slightly higher levels of society than most of the indentees and

were more likely to have skills, useful connections, and some small capital to rebuild their lives. Some had social pretensions. Of a sample of over four hundred such free émigrés, almost a third claimed gentry status, and 27 percent claimed to be "merchants" of one sort or another. But these were not equivalents to the aristocrats and gentry of the earliest years of settlement, for whom Virginia had been a scientific curiosity and its founding an adventure or a patriotic challenge to the claims of rival powers. These free, uncommitted emigrants, outnumbered by indentured servants by three or four to one, were impelled by the same search for security as were the servants. They too were willing to risk resettlement and labor in the tobacco world to avoid material and social decline.¹

Locating promising sites for their settlement, they quickly began the struggle to open wild fields to cultivation. Like Robert Cole, a yeoman's son from Middlesex, England, who in 1652, with resources brought from home, settled his family on a riverside plot in St. Mary's County, Maryland, they acquired land through purchase or headrights and began providing subsistence for their families, producing goods for local trade, and growing tobacco for distant markets. Slowly, in small parcels, they took over promising lands along the main riverways and streams, settled into rigorous seasonal routines, and learned ways of coping with the vagaries of distant tobacco markets, the periodic upheavals of nature, and the isolation and lack of community life in this borderland world. In hundreds of modest farms, the planters, their families, and one or a few servants lived alone, their only regular contacts the commercial agents or more prosperous planters who managed the marketing of their tobacco crop, and their few closest neighbors five or ten miles distant. As their numbers grew and their lives became more complex with a degree of prosperity, the need had emerged for at least the most essential public institution, local courts, which were beginning to multiply within newly created county jurisdictions.²

The inner lives of these thousands of small and middle-level planters will never be known, but as in the case of Cole, most of whose farming records have survived, one can see the outline of their exterior lives and ordinary routines. Survival required diligence, discipline, calculation, family cooperation, and a modicum of luck. They lived frugally, but they did not assume, as they might have been expected to assume, that "some must be rich some poore, some highe and eminent in power and dignitie; others meane and in subieccion." They were ambitious—for



Origins of free immigrants to the Chesapeake in the seventeenth century

greater security, an increase in wealth if not income, and a higher position in life than they had had before. They took what they could as soon as they could and in any way they could, acting, as Karen Kupperman has remarked of their predecessors, "with barbarity toward those who were powerless, whether they were Indians, Africans, or fellow Europeans."³

With the initial expectation that profits would rise in proportion to the scale of tobacco cultivation, and with golden opportunities beckoning with each cyclical boom in the fluctuating market price of tobacco, efforts were made to acquire larger and larger plots of land and therefore to recruit, by any means, legal or illegal, a labor force capable of working successfully in the expanding tobacco fields.

The work, as it took standard form, was arduous. Seeds had to be planted in constructed mounds, the plants had to be topped off to enhance the leaves' growth, weeds hoed out, suckers and worms removed by hand, and the mature leaves cut off, hung up for curing, and then carefully packed for shipment. In this hard, tedious regime, which extended over the entire year, casual workers would not succeed. Strong motivation and effective discipline were needed; both were present in sufficient degree through most of the seventeenth century.⁴

The legal mechanism for securing and binding voluntary labor remained, as it had been, the contract of indenture—a legal commitment for full-time labor for four-, five-, seven-, or more year terms in exchange for maintenance, protection, and at termination some form of “freedom dues.” By midcentury, notices of labor needs in the Chesapeake colonies as in the West Indies appeared everywhere in England's major port towns and the surrounding clusters of villages—posted in taverns, hawked at hiring fairs, and advertised widely by recruiters sent out through the countryside by merchants with investments in the colonies. Enticements were offered and loudly publicized: familial care, protection, and at least the prospect of land of one's own when one's bondage was completed.⁵

But propulsion was more important than enticement. With England's population growing steadily through the first half of the century (from 4.1 million to 5.3 million in those fifty years), real wages declining, periodic depressions disrupting key industries, and political upheavals unsettling development plans of all kinds, tens of thousands of unskilled laborers and insecure tradesmen and craftsmen faced unemployment and its consequences. Wandering from village to village and from farms to towns in search of employment, they intensified the population's usual mobility, and in desperation many, fearing vagrancy and destitution, chose the risks of an overseas voyage and labor in strange circumstances. Approximately one hundred thousand Britons, the great majority English, are known to have migrated to the tobacco coast in the seventeenth century. At least 70 percent of them and probably 85 percent came as indentured servants. Bonded for service, they were at work in the oldest settled areas as in the newest, arriving year after year on veritable convoys of ships from the major English ports. Middlesex County, between the Potomac and the Rappahannock rivers, a contemporary wrote, was a “sea of servants”—45 percent of that county's entire population were servants in 1668—and the same could have been said of other counties.⁶

Who were these tens of thousands of voluntarily bonded servants? Where were they from, what were their backgrounds, what were the differences and similarities among them? How did they live in this strange environment? What would become of them when they were released from service?

Leaving England at first mainly through London, then increasingly through Bristol and Liverpool, most were recorded as residents of those major port cities or of their hinterlands within a range of forty miles. But many came from distant places not only in the south of England but in the Midlands and the north country as well. Almost 40 percent of those leaving Bristol said that their homes were more than forty miles distant from the port—how distant, we do not know. And many of those who listed the ports of departure as their homes in fact came from elsewhere, from places unknown, the ports of departure being secondary or tertiary stopping points as they wandered in search of employment. Thus the migrants to the Chesapeake represented a drainage of the local “surpluses”—those dislodged in the nation’s shifting economy—from “declining market towns, pastoral parishes, and proto-industrial villages.” One Virginia county, York, along the Rappahannock River, had recent settlers—both bonded and free—from eleven English counties extending from Devon to Yorkshire as well as from London and Bristol, and they brought with them a variety of English subcultures, and to a lesser degree Welsh, Scottish, and Irish backgrounds as well.

Dislodged workers, caught in a buyer’s market, had only their labor to offer and whatever small skills they could claim. In the early years some, perhaps half, of the male migrants could claim some skill in a craft or trade and could therefore be classified as having been drawn from middling levels of the working population. But at the point of migration all were living at the lower margins of British society. The most debased, possibly 40 percent of the total, were the youngest, the least skilled and most destitute; they shipped out without the protection of legal indentures and served therefore according to the harsh terms of extemporized contracts that followed Virginia’s “local custom.”⁷

Within the great flow of immigrant workers there continued to be utterly destitute vagrants picked up by recruiting agents at “beggars’ fairs,” where one could find “more rogues than ever . . . whipped at a cart’s arse through London . . . [or] dropping out of Ireland.” There were young orphans routinely disposed of to brokers by parish overseers

to reduce welfare expenses. There were those "lewd and dangerous persons, rogues, vagrants, and other idle persons"—those "sturdy beggars as gypsies and other incorrigible rogues and wanderers"—who were ordered by the Commonwealth government to be seized by the local constables, imprisoned, and unless acquitted of vagrancy, sent to the plantations "for five years under the condition of servants." And there continued to be clandestine seizures of men and boys—occasionally women as well—for forced shipment to the colonies, where their services were offered for sale. It was a brutal traffic, described in vivid accounts by victims and in court records. What had been occasional in the Virginia Company's earliest years had developed into an organized system with safe houses for confining victims until shipping could be arranged and with standardized transaction costs and procedures.

Week after week, month after month, children, male and female, were snatched from the streets of London for shipment and sale "for a slave" in Virginia. One was "an infant about four years of age," the Middlesex County Court in London recorded, "to the endangering of his life"; another, a servant deluded and enticed by false promises; still another, an apprentice sold by his master and held on shipboard for a week before being rescued. As early as 1645, kidnapping for the servant trade in Virginia had become so notorious that the government ordered all public officers to apprehend anyone caught "stealing, selling, buying, inveigling, purloining, conveying or receiving children so stolne." But what the Privy Council denounced as a "barbarous and inhumane" traffic continued. In 1664 Bristol sought to control the traffic by creating a registry office to record all legitimate outbound passengers and exclude all others. London later did the same. But "spiriting" could not be stopped by legislation or bureaucratic procedures. Only the decline in the market for such servants could reduce its profitability and hence its frequency. Until then stealing, buying, and inveigling children, servants, and vagrants remained a particularly vicious, if minor, part of the peopling of the tobacco lands.⁸

Vicious too, though legal, was the forced transportation to the colony of convicts, the practice that Dale had hopefully imagined would solve the labor problem. Less vicious, and greater in volume, was the traffic in prisoners of war, which flourished in the years of the Commonwealth's military campaigns. How many captured troops of the royalist armies actually reached the Chesapeake and were forced to work in the

fields for seven years cannot be known. It is known, however, that after each of Cromwell's major victories—at Preston, Dunbar, and Worcester (1648–50)—hundreds of captured troops, most of them Scots, were rounded up and disposed of. Some were allowed to return to their homes, but some were handed over to local merchants in need of cheap labor, some were sent to serve as mercenaries in foreign armies, and many, below the “quality” of lieutenant or “cornet of horse,” were bound to service in the plantations. At least a thousand prisoners were authorized to be shipped to Virginia and New England after Dunbar, and after Worcester 1,610 were granted to people desiring them in Virginia, upon assurance that the prisoners would be accorded “Christian usage.” In all, close to three thousand war prisoners were authorized in a short period of time for shipment to the Chesapeake. And while their arrival and precise location in the colonies cannot be traced, by the late 1650s Scottish names suddenly became prominent in the land patent books. In 1665 a Scottish minister in Virginia reported that his countrymen in the colony were “living better than ever their forefathers, and that from so mean a beginning as being sold [as] slav[e]s here, after . . . Worcester fight are now herein great masters of many servants themselves.”⁹

2

Thus the workforce, flooding into the Chesapeake colonies after the boom in the tobacco industry and the expansion of land settlement, was an amalgam of people, largely English, of various geographical and sub-cultural backgrounds, some from provincial farmlands, some from forests and fens, some from inland towns and villages, many from the slums of the two main Atlantic ports. Some were respectable, some vicious, some hopeful; many were destitute and despairing. Yet there were measurable characteristics of this great miscellany of people. The two main surviving registers of outbound passengers—Bristol's of 1654–84 and London's of 1682–86—have made possible statistical samplings of part, at least, of this immigrant population, consisting largely of indentured servants.¹⁰

At the start it was preponderantly a male population of young adults, the great majority between the ages of sixteen and twenty-five. But in both characteristics, sex and age, there were basic changes as the decades passed that reflect forces at work in British society, played out against a constant if erratic demand for labor in the colonies. The socioeconomic

foundations shifted. England's population growth slowed, the nation's economy stabilized after the Restoration, industry and commercial agriculture revived, and markets increased for agricultural and industrial production, hence for labor in various forms. *restoration*

The results were palpable in the changes in the immigrant flows to the Chesapeake. The disproportion of incoming males decreased steadily through the mid and later years of the century, from six to one in the early years to perhaps three to one at midcentury to about 2.5 to one in 1700. And when women, largely spinsters and widows, appeared in relatively greater numbers, the average age of men declined, from only 5 percent younger than sixteen years to three times that proportion in the 1680s to perhaps eight times at the end of the century. Both changes suggest the growing difficulty of recruiting from the optimal, core population of Britain's middling working classes and the turn to the margins of society, to people less desirable to Chesapeake plantation owners: convicts, vagrants, war prisoners, orphans, and women. Increasingly there were Irish among them, despite the fact that in the West Indies, where Irish laborers had been recruited in large numbers, they had proved to be difficult, unreliable, and often rebellious, largely as a consequence of their resistance to the vicious treatment they received from the English planters, who despised them.¹¹

Once debarked at the small Chesapeake ports and riverside inlets on the mainland, the incoming servants found themselves transformed into commodities—commoditized units of labor. If their service was not already committed, they—their services—were sold to the highest bidder. Most of the uncommitted were disposed of in shipboard and dockside transactions, the length of their labor determined by the terms of sale. Those who were not sold on shipboard were peddled through the countryside for sale in small numbers or individually to inland farmers, many of whom had themselves only recently been freed and were struggling to produce enough tobacco to buy a sufficient stake in the land.¹²

Though conditions had improved since the earliest, most barbarous years, mere physical survival for the newly recruited laborers was still the most immediate problem. The sudden encounter with the hot, malarial climate, especially in tidal and low-lying areas, was shocking and debilitating, and when the effect of the environment was compounded by a severe work regime, the result was devastating. Between 15 and 30 percent of male immigrants to Maryland at midcentury died within the first, "sea-

soning" year of their residence, and those who were alive at age twenty-two could expect to live only another twenty-three years. In one county 17 percent of the immigrant males who were alive at age twenty-two died before thirty, 41 percent by age forty, 70 percent by age fifty. In Middlesex County, Virginia, "only a minority lived to the end of their service and joined the ranks of the free."

The mortality rates were scarcely better for those born in the land. In Maryland nearly 30 percent of all infants died in their first year; overall 47 percent of the population was dead by age twenty, and those who reached that age would live, on average, only another twenty-six years. Women fared slightly better than men, but the differences were slight. The death rate was so high among both the 100,000 immigrants and the American-born Europeans that the total European population in 1700 was only approximately 87,000: fewer by 15,000 than the number of immigrants that had arrived. An estimated 34,000 people, white and black, arrived in Maryland between 1634 and 1680, but the colony's total population in 1680 was only 20,000. The demographic deficits would never be made up as long as the male preponderance among the servant population persisted and indentured women lost four or more reproductive years in service. The consequences of the devastating death rate and reproductive deficiencies transformed the structure of family life.¹³

Family life was twisted, devastated, by early death. In Charles County, Maryland, marriages lasted on average only nine years before one partner died. In Virginia most children lost at least one parent by the time they reached majority; over a third lost both. In Middlesex County a quarter of all children lost one or both parents before age five; half did so by age thirteen; and almost three-quarters by age twenty-one or by the time of marriage. Old people were rare. Few children ever knew their grandparents, and orphanage was common. Thirty percent of all children were orphans before their eighteenth birthday and were left in the care of uncles, family friends, legal guardians, godparents, and above all stepparents.

With marriages so frequently broken by the early death of one partner, second and third marriages of widows and widowers with children (serial polyandry) led to the creation of households that were complex, jumbled, unstable, at times bizarre. Had one dropped in on a typical Middlesex household in the mid-seventeenth century, that county's historians write, one would have found

orphans, half-brothers, stepbrothers and stepsisters, and wards running a gamut of ages. The father figure in the house might well be an uncle or a brother, the mother figure an aunt, elder sister, or simply the father's "now-wife"—to use the wording frequently found in conveyances and wills.

Childhood, so often riven by parental loss or clouded by fears of looming disasters, scarcely existed as a time of security and nurturing. Thus the experiences of the child Agatha Vause: by her tenth birthday, she had lost a father, two stepfathers, a mother, and a guardian uncle. Stability and security might be found, in some small degree at least, in this world of transience and childhood trauma, the same historians write, not in nuclear families but in neighborhood communities of kin and quasi-kin, neighbors and friends who interacted not in formal institutions (church, parish, markets, manorial courts) but in irregular workaday encounters and on occasions of mutual help.¹⁴

Living conditions contributed to the brutality of life and the savage age death rate. Houses on the small plantations in Maryland as in Virginia continued to be drafty wooden boxes, "dribbled over the landscape without apparent design." As in earlier years most houses consisted of a single room or at best two rooms with a loft above. Floors were usually beaten earth, the walls made of raw unpainted planks thinly chinked with clay. Normal furnishings were rolled-up mattresses for beds (bedsteads were rare), a bench and a table, a few chests for storage, and pewter and wooden dishes. Spoons and one's fingers were the only utensils for eating. There were no privies, and even chamber pots were rare. People relieved themselves outside, close to the walls, "creating stench that must have pervaded all rooms of the house." Clothing hung from the walls or was stretched out as a space divider. The small flimsy buildings were cold in winter and hot and insect-ridden in summer; with shuttered windows, they were always dark. Above all, as the family's central place for meals, sleeping, procreation, care for the sick, and entertainment, they were crowded. Two persons per bed was the average for Maryland's ordinary families, and in this as in so many other aspects of daily life, there were few differences between servants and masters.

Most of the small farmers and their servants lived at the level of the most menial householders in England, their dwellings only "slightly

larger and modified versions of flimsy English huts erected on commons and wastes," their "standard of living little different from the lowest levels of society in England." Few whose estates were worth less than £50 (the great majority of the planters) had beds to sleep on with sheets and blankets or enough furniture for all to eat at a table. And life for those at the bottom of the tobacco world was primitive. At suppertime, the leading archaeologists of seventeenth-century Virginia write, one can imagine

a wife, husband, two children, and perhaps a servant are gathered together in the perpetual dusk of their shuttered cottage . . . their dinner is cornmeal mush boiled in an iron pot. The food is ladled into five plates or porringers, one for each person. The father sets his down on a large storage trunk which he straddles and sits on. His daughter is perched on the edge of a small chest, the only other piece of furniture in the room. The rest either stand or squat along the walls. They spoon up the food from the plates they must hold in their hands or place on the floor. They drink milk or water from a common cup, tankard or bowl passed around. No candle or lamp is lighted now or later when the room grows completely dark except for the glow of embers on the hearth. . . . While someone rinses the bowls in a bucket of water (there being only one pot) someone else drags out a cattail mattress and arranges it in front of the fire. The husband, wife, and daughter lie down there, covering themselves with a single canvas sheet and a worn-out bed rug. The son and servant roll up in blankets on the floor. For warmth all sleep in their clothes.

The wealthier planters fared better, but their houses have been compared to "modest farm cottages in England." Only the wealthiest had multi-room houses. There were no spacious brick mansions; even the upper gentry's dwellings were "small, inconspicuous, and inconsequential." The greatest of them, the Wormeleys' "Rosegill," overlooking the Rappahannock River, was only a nine-room wooden building, surrounded by small outhouses for cooking, storage, and housing servants.¹⁵

In theory relief might have been found in the benevolence of master-servant relations, since indentured servants were assumed to be temporary family members, protected as well as disciplined by the paternalism of the household. And so it was in many cases. But in the grinding reality of small-scale tobacco farming, where masters lived and worked

intimately with servants, their clothing and appearance in no way different from those of their hirelings, relationships, however benevolently begun, easily frayed and became brutal. Some masters, especially the most marginal and desperate, drove their servants hard, stirring resistance that could become violent and that could lead to savage reprisals. Murders were reported. Women were commonly exposed to sexual exploitation: more than 10 percent of all children born to immigrant women in seventeenth-century Maryland were bastards. Women who bore illegitimate children, like those who attempted escapes and forceful resistance, were punished most commonly by extensions of service and so to still further exploitation.¹⁶

Yet however miserable their existence, however brutalized they may have been in service, most of the immigrant servants carried with them a sense of independence derived from the knowledge that their bondage was voluntary, contractual, and limited in time, and that they could look forward to an independent future and possibly a stake in the land. And some, like Clocker, Fenwick, and Adams in Maryland, saw their aspirations fulfilled as they advanced from servitude to freedom and acquired, with hard work and careful management, an independent if small stake in the land, with one or two servants and a place in the management of local affairs. But as hundreds of freed servants became thousands, as the most fertile coastal and riverine lands were claimed if not yet cultivated, and as a long depression in the tobacco trade compounded the problems for small farmers, the incidence and prospects of freed servants acquiring land of their own declined. By the end of the century the majority of freedmen had little choice but to move to more remote or poorer land exposed to Indian attacks, or to continue in service, now for small wages, ultimately to become lifelong tenants or sharecroppers. So in Maryland in the late seventeenth century fully one-third of all householders were tenants; in Virginia perhaps only one in ten former servants were able to establish themselves in the ranks of independent proprietors and profitable planters.¹⁷

Such discouraging prospects, relayed back to England by returnees and correspondents, were in themselves enough to reduce the flow of new recruits to the North American servant population. By the 1670s the decline in their numbers within increasing flows of immigrants to the region was palpable. By the 1680s it was a major problem for the established planters. Their ultimate solution, slow in coming at first but

reaching fulfillment at the end of the century, was the substitution of African slaves for the familiar British and European servants—people utterly alien to the planters, of perplexing character, and believed to be barbarous by nature.¹⁸

3

“Negars,” “negors,” and Africans otherwise identified by color had begun appearing in very small numbers well before 1619, when John Rolfe noted the arrival in Virginia of “20. and odd Negroes.” They were Angolans hijacked from a shipment to Spanish America and sold by their Dutch captors “for victualles.” Their numbers rose very slowly, their arrivals random occurrences. The Virginia census of 1625 identified only twenty-three blacks, scattered thinly through the separate plantations. In 1640 Maryland recorded twenty blacks. But then the numbers began to rise as planters gradually, almost casually, began including them in their purchasing orders. So in 1638 Baltimore ordered his agent to buy for him—along with forty cattle, ten sows, and forty hens—“ten negroes to be transported to St. Mareys,” and in 1642 Leonard Calvert offered a passing ship captain three manors or 24,000 pounds of tobacco for fourteen “negroe men-slaves, of between 16 & 26 yeare old, able & sound of body and limbs.” By 1650 there were 300 blacks in Maryland; in 1660, 758; and in 1670, 1,190 (9 percent of the population), by which time Virginia’s black population had reached 2,000. But there was as yet no wholesale importation of slaves. The proposal of the Royal African Company in 1664 to send one to two hundred slaves a year to Maryland had to be refused, Charles Calvert reported, because there were not “men of estates good enough to undertake such a businesse,” despite the fact that “wee are naturally inclin’d to love neigros if our purses would endure it.” Most if not all of those who arrived in Maryland came not directly from Africa but from the Caribbean islands, Barbados in particular, from Spanish settlements on the mainland, and from Dutch islands via New Netherland, hence people who were to some extent “seasoned” and used to life in European colonies. And they came in various statuses. Some came as freemen and remained free, though often under particular disabilities. Others could show by oral or written testimony that their service was contractually limited to a specific term, after which, like indentured servants, they were to be released.¹⁹ And a very few, who came bound

in service, through ceaseless labor and fierce determination were able to buy their freedom and that of their families and establish themselves in the society at large. In 1668 nearly a third of the fifty-nine blacks in Northampton County on Virginia's lower Eastern Shore, all of whom had arrived bound in unlimited servitude, had acquired freedom; some had bought property which they were able to pass on to the next generation, established effective community ties among themselves, and participated broadly in the larger white society. All blacks before 1660, Edmund Morgan writes, "whether servant, slave, or free, enjoyed most of the same rights and duties of other Virginians. There is no evidence . . . that they were subjected to a more severe discipline than other servants."²⁰

But the importance of the most remarkable achievers among the blacks can easily be exaggerated. Their numbers in fact were small, they are found only in one or two counties, they were subject to white harassment, and their claims to independence and full equality were tenuous, contestable, and not long sustained. The great majority of Africans, even in this most favorable period, were never viewed as fully equal to white servants. Lacking contracts, actual or implicit, and having been bought or seized in Africa or abroad, they were considered to be bound in servitude for life unless otherwise identified, a condition never imposed on whites but that seemed suitable in most Europeans' eyes. For they were black, and color mattered. It carried with it a plethora of cultural assumptions. To be black in north European culture, and especially in Elizabethan and Jacobean England, was to be dark in a cultural sense—base, sinister, inferior, "grossly uncivil . . . unscrupulous, thieving, and sometimes treacherous."²¹ It was this assumption of the blacks' cultural baseness, of their inborn inferiority in the scale of human development, and their complete alienation from English cultural values, that, together with the rapidly increasing demand for labor, made possible the barbarism of their reduction to the emerging legal status of "slaves."

In Elizabethan usage, *slave* was a general term of derogation used in offhand ways to refer to any deeply vulgar, degraded people and commonly applied to blacks held in servitude. As the economic value of servants without limit of time grew in the labor-short plantations and as white indentured servants became less available, the term *slave*—the word itself—acquired a salience it had not had before and, gradually, a new specific, legal meaning that would render the use of the word "scandalous," a contemporary wrote, if it were to be applied to white servants. Something

new and vital, a newly defined legal category, began to emerge, out of the difficulties of the labor situation, out of experience in plantation agriculture, out of necessity, and out of a sense of racial differences.²²

There had been no preexisting legal definition of *slavery*, and no one set out to infuse the term with a new, specific meaning. But as the blacks' importance in the labor force grew, disputes arose over the terms of servitude which could only be resolved through litigation, despite the lack of legal precedents. Laws to resolve the conflicts and confine the blacks to maximum exploitation had to be devised. Analogies were useless. Kidnapped boys who, like Africans, arrived without work contracts were bound simply by "the custom of the country" which however harsh allowed for eventual release. Few thought the same should apply to blacks, or that a limited contract of some sort was *implied* where bondage was unspecified. If *slavery* meant lifelong servitude, as in fact it most often did, was that status heritable? Did it carry over to the slaves' offspring? Were marriages between whites and blacks, free and unfree, Europeans and Africans, legal? If so, were the children of such unions white or black in the eyes of the law? Did conversion to Christianity release one from bondage?

Answers had to be found if the planters' economy was to prosper. What began as conditions *de facto* became statuses *de jure*, as the planters, merchants, and lawyers sought to remedy discrepancies, resolve ambiguities, and bind into an effective and reliable labor force the growing mass of black workers. There were some working models, if not legal precedents, that might in some degree be followed. Blacks had been enslaved in the Caribbean islands before the Chesapeake authorities began searching for legal definitions, and slave laws had been passed there, especially in Barbados, that were known in Virginia. So to some extent, as April Hatfield has suggested, the emerging legalities of slavery developed as an intercolonial "conversation." But the Barbadian laws and practices did not cover all contingencies or fit closely the more complex economy of the Chesapeake.²³

So the planters, merchants, and lawyers in Virginia and Maryland began the process of finding their own way toward a full legal definition of the Africans' bondage. Though by midcentury some clarity had been reached, ambiguities and constraints remained—but not because of moral concerns. There were none. To those Virginians and Marylanders who owned slaves, bought and sold them, forced them into degrading and

perpetual labor, there were no moral constraints. Even the few planters known to have been generous to their slaves, who freed them in their wills and provided for their welfare, did not condemn slaveholding as such.²⁴

The English were people who denounced barbarism as they knew it, declared it to be un-Christian, uncivilized, and immoral. But sensibilities in the world they knew were blunt, and relationships between masters and servants were commonly abrasive, at times savage. Though slavery however defined was degrading and brutal, in its various forms it was familiar, venerable, and as far as the planters knew, in principle uncontested. It had existed in one form or another, defined in one way or another, for ages untold, and it flourished elsewhere in their own time: in the Middle East, in North and sub-Saharan Africa, in Iberian America, and among native tribes.²⁵ The question was not what the moral limits of slavery might be but how it might best be elaborated and defined in law for maximum use in the Chesapeake, and how it might relate to differences in race.

Answering these questions—even grasping their implications—was difficult, and successive efforts to reach a logical and complete resolution were halting and confused. By the 1660s and 1670s, the need for clarity in the legal status of blacks had become urgent, and laws and regulations of deepening confinement, incomplete and ambiguous though they were, followed in quick succession.

One of the most important of the early laws, an epitome of the difficulties of definition, was adopted by Maryland in 1664. It was the first statute to recognize lifelong heritable slavery as a matter of law, but strangely that was not its primary purpose. Confusing in its very title (“An Act Concerning Negroes & Other Slaves”—the latter unspecified), the law stated at the outset that all negroes or other slaves already in the colony or others who would come in the future “shall serve Durante Vita” (for life), and their children will follow their fathers’ status into the same condition. That profound assertion, which went to the heart of the matter, seemed obvious to the authors of the statute, and they disposed of it quickly, without elaboration, comment, or justification. What concerned them and needed detailed comment and justification was the question of miscegenation: what to do about the “divers freeborne English women [who] forgettfull of their free condicion and to the disgrace of our nation doe intermarry with negro slaves.” Conflicts had arisen “touching the issue of such woemen” that threatened “great damage” to the slaves’ masters. To prevent such “shamefull matches,” the law stated that in the

future white women who married blacks would become slaves of their husbands' masters as long as their husbands lived, and that their children would become slaves "as their fathers were." As for the children of the white women who were presently married to negroes, they were to serve their parents' masters "till they be thirty yeares of age and noe longer."²⁶

By this statute, ambiguous and incomplete in its logic, slavery was declared to be lifelong servitude, but this condition was not exclusively confined to the negro race, since there could be "other slaves" as well. Interracial marriages were fiercely condemned, but they were recognized as legal; and derivative slavery, though absolute for slaves' children, was limited for the white wives of black husbands and for the children of interracial marriages that already existed. The statute ruled that the status of children of mixed marriages would follow the condition of their fathers, which was the normal provision of the English common law. But it would soon be seen that in the plantation world this provision would have bizarre consequences. Slave women would be bringing up their own children in freedom and the women's masters would be denied the benefit of their slaves' fertility. The law was therefore changed to matrilineal descent, which became the normal American usage. And when in 1681 it was seen that the law as written might encourage planters to marry off their white female servants to black slaves to reduce the women to slavery, the entire statute was repealed. Even more confusing was the struggle, not even attempted in this early statute, over how to define slaves as the property they evidently were. Were they realty (like land and buildings) or chattels (like horses and plows) or freehold (permanent attachments to specific realty)?

In time, through successive revisions and expansions of the early laws of servitude in the two colonies, such confusions, ambiguities, and anomalies would be eliminated. Both colonies outlawed conversion to Christianity as grounds for manumission (Virginia as early as 1667), encouraged mating among slaves but did not recognize blacks' marriages as legal and banished whites who married blacks, restricted slaves' movements without passes, mandated the automatic expulsion of newly freed slaves, relieved masters of the charge of felony whose "correction" of a slave ended in the slave's death, limited slaves' access to arms and legal processes, and after "peculiar contortions," William Wiecek writes, "in efforts to make a human being into a vendible thing," settled on the compromise of "chattel personal."²⁷

In the end, in both colonies, though with less rigor in Maryland, the ultimate logic of chattel slavery was reached. Slavery would be, and would remain, a condition of unqualified, total, lifelong servitude, a form of bondage that would apply *only* to blacks and mulattoes, and to *all* blacks and mulattoes, except the very few who were legally free; and it would be heritable through matrilineal lines. Slaves would be chattel in the eyes of the law, to be dealt with, disposed of, as such, and any limitations in that status would only be matters of personal indulgence, the law being universally and fully enforced by constabulary authority where it existed, by vigilantism, by brute power.

There was logic but no prior design in the development of this barbarous system of human debasement, nor had it been inherited or borrowed from abroad. It had been devised in the course of three generations by ambitious planters and merchants in the Chesapeake colonies desperate for profits, familiar with human degradation, and freed from moral scruples by their deep, pervasive racism.

4

This Chesapeake upper class, an incipient gentry or aristocracy, grew quickly in the middle years of the century as the tobacco industry expanded and with it successful claims to large parcels of land. The planters—dominant in the political as well as the economic life of the Chesapeake colonies—were, and would remain, the dominant association of large landowners and tobacco producers, a tightly bound oligarchy with related interests. Originally a small group, it emerged from two quite different sources: from among the more successful of the local, resident farmers aspiring to greater affluence, some of whom had arrived as indentured servants in the 1620s, and from groups of new arrivals in the two decades and the three decades that followed, immigrants who claimed for themselves more elevated statuses, better funding, and connections that would serve them well.

The former—the sons of Peter, Wood, Menefie, Urie—having fought their way up by difficult circumstances after the initial convulsive settlement, and survived Indian wars and disease, they added to their property the help of their merchant friends, to build substantial estates, and to find their way into the office to protect their interests. By the 1680s the personal

... a thousand acres, to which, as high sheriff of Talbot County, ... eight thousand more, spread out over six plantations. ... who married the Lloyds' daughter Anna Maria, enhanced the family influence, which would extend through three generations, culminating in the great men of Revolutionary fame. But ... well-connected ... the Darnalls and the Tills ... were rare. For all his efforts ... Charles Calver ... most constructive and long-lasting of ... governors, ... the lack of well-educated and socially prominent men in the ...

These ambitious newcomers, in ... Virginia, had means to claim land and capital to establish their ... fortunes. Many in Virginia and several in Maryland were ... by the chronology of their arrival. The most fortunate fell ... areas of land that had already been brought under cultivation. ... -year-old William Byrd, soon after his arrival in ... in 1670, ... the developed James River estate of his uncle, merchant-planter and councilor Thomas Stegg. Lewis Burwell inherited not only his father's ... but also the developed estate of his ... Roger Wingate. ... of the Carters' lands can be traced back through John Utie to a John ... who left Virginia as early as ... The Blands' estate in Charles ... County, which later became ... Harrison's Berkeley plantation, had ... cleared for settlement in 1619 by the servants of the "particular" planter of Berkeley ... And similarly the Neales in Maryland received ... memorial property on the Potomac that they had owned ... that had abandoned in 1649.⁴¹

5

So in the Chesapeake tobacco lands, small groups within the second and third waves of migration moved toward setting themselves off as a ruling landed gentry. That they succeeded in part was due not only to their material advantages but also to the force of their motivation. For they were in social origins close enough to secure establishment in gentility to feel the sense of deprivation most acutely. It is not the totally but the partially dispossessed who build up the most propulsive aspirations, and behind their zestful lunging at propriety and status lie not the yearnings of the disinherited but the pent-up ambitions of the gentleman *manqué*. These were neither hardheaded pioneers nor dilettante romantics but

ambitious younger sons, and daughters, of middle-class families who knew well enough what gentility was and sought it as a specific objective.

Yet whatever their longings, they were not and never would be *rentiers* in the traditional mode, living securely on the income of rents produced by permanent tenants. Most of the large tracts of land they claimed remained undeveloped until, gradually, they acquired the labor, free and slave, necessary to bring them to cultivation. Tenants brought in an income, and most large planters would rent out parcels of land, though for many tenancy would prove useful less as a source of reliable income than as a cheap way of improving land held in reserve for future development or sale. They were, and could not avoid being, estate managers directly involved in crop development and marketing, labor recruitment, land sales, and bookkeeping. In time they would acquire overseers, foremen, and household assistants. But they themselves, constantly threatened with crop disasters, labor problems, and bloodshed on the borders, would be directly responsible for economic success or failure. Their fortunes would always be caught between uncontrollable fluctuations in the markets they served and the necessity of maintaining an effective labor force and of expanding into fresher, more fertile land.⁴²

Especially in Maryland but also in the newly opened areas of Virginia, there was no insulation from the impact of frontier life. Even the dwellings of the emerging gentry and their standard of living, while better than those of the ordinary planters, were crude and limited by the standards of the time. Governor Berkeley's gubernatorial "mansion," Green Spring House, adjoining his five-thousand-acre plantation, grew by increments from very modest beginnings, starting as a small manor house, then doubling in size to form an odd-shaped, sprawling edifice. The houses of the other leading planters in both Maryland and Virginia were "small, inconspicuous, and inconsequential." Lord Baltimore, reporting officially in 1678, was more specific: the houses of Maryland's leaders, he wrote, built "at considerable distance from each other, were very meane and little and generally after the manner of the meanest farm houses in England." Modern historians agree: none of these dwellings "came close to matching in size, design, and quality of building materials the homes of well-to-do English squires or wealthy merchants."⁴³

THUS THE CHESAPEAKE SETTLEMENTS, once the scene of squalor, murderous race warfare, and desperate, often brutal, efforts to recruit

an effective labor force, had acquired a degree of stability as an agricultural production center, some normalcy in the working populations, and the beginnings of a settled aristocracy of landowners, merchants, and large-scale tobacco planters. And as this process of maturation developed, it impelled the region's contacts outward, to the expanding Atlantic networks and to the mainland colonies to the north. Of these the most important was the multicultural, polyglot farrago of Dutch New Netherland—a virtual Babel of north Europeans—pressing south against a strange collection of Swedes and Finns settled precariously along the Delaware River.